

ORDINANCE NO. 32-24

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, ADOPTING A SMALL-SCALE LAND USE MAP AMENDMENT REDESIGNATING A 1.07-ACRE PORTION OF A 9.34-ACRE PARCEL OF LAND LOCATED SOUTH OF SHERWOOD BOULEVARD AND EAST OF SOUTH MILITARY TRAIL AT 3900 SHERWOOD BOULEVARD, AS MORE PARTICULARLY DESCRIBED HEREIN, FROM COMMUNITY FACILITIES TO LOW DENSITY RESIDENTIAL PURSUANT TO THE PROVISIONS OF THE "COMMUNITY PLANNING ACT," FLORIDA STATUTES SECTION 163.3187; PROVIDING A CONFLICTS CLAUSE AND A SEVERABILITY CLAUSE; PROVIDING AN EFFECTIVE DATE; AND FOR OTHER PURPOSES.

WHEREAS, the City of Delray Beach ("City") exercised the authority granted pursuant to the provisions of Florida Statutes Sections 163.3161 through 163.3248, inclusive, known as the "Community Planning Act"; and

WHEREAS, in passing Ordinance No. 19-19, the City Commission adopted the "Always Delray" Comprehensive Plan, including the City Land Use Map; and

WHEREAS, TOLL SOUTHEAST LP COMPANY, INC. ("Owner") is the owner of 3900 Sherwood Boulevard ("Property"), which measures approximately 9.34 acres and is located south of Sherwood Boulevard and east of South Military Trail, as more particularly described in Exhibit "A", Sketch and Legal Description; and

WHEREAS, a portion of the Property ("Subject Area") has a Land Use Map designation of Community Facilities (CF), as shown in Exhibit "B," Existing Land Use and Subject Area; and

WHEREAS, the Owner authorized Edwin C. Muller III, AICP, CNU-A, CS ("Applicant") to submit a Land Use Map Amendment for the Subject Area; and

WHEREAS, the Applicant requested a small-scale Land Use Map Amendment redesignating the Subject Area to Low Density Residential (LD), as shown in Exhibit "C"; and

WHEREAS, pursuant to Florida Statutes 163.3174(4), the Planning and Zoning Board for the City of Delray Beach, sitting as Local Planning Agency, considered this item at a public hearing on October 21, 2024, and voted 5 to 0 to recommend that the Land Use Map designation be changed for the Subject Area, finding that the request and approval thereof is consistent with the Comprehensive Plan and meets the criteria set forth in the Land Development Regulations; and

WHEREAS, the City held all duly required public hearings prior to submission of the proposed amendment of the plan to the State Land Planning Agency of the Florida Department of Economic

Opportunity (DEO), in accordance with Chapter 163.3184, *Florida Statutes*, for a small scale comprehensive plan amendment; and

WHEREAS, the City Commission considered the Land Use Map amendment and has considered the respective findings as set forth in the Comprehensive Plan and Land Development Regulations.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, AS FOLLOWS:

Section 1. The recitations set forth above are incorporated herein.

Section 2. The City Commission of the City of Delray Beach finds that Ordinance No. 32-24 is consistent with the Comprehensive Plan, meets the criteria set forth in the Land Development Regulations, and is in the best interests of the City.

Section 3. The City Commission of the City of Delray Beach hereby declares its intent to exercise the authority granted pursuant to the provisions of Florida Statutes Sections 163.3161 through 163.3248, inclusive, known as the "Community Planning Act."

Section 4. The Land Use Map of the City of Delray Beach be, and the same is hereby, amended to reflect a Land Use Map designation of Low Density Residential (LD) for the Subject Area shown in Exhibit "B".

Section 5. The Land Use Map of the City of Delray Beach shall, upon the effective date of this Ordinance, be amended to conform to the provisions of Section 4 hereof.

Section 6. All ordinances or parts thereof or parts of the Code conflicting or inconsistent with the provisions of this Ordinance are hereby repealed.

Section 7. If any word, clause, sentence, paragraph, section, or part thereof contained in this Ordinance is declared to be unconstitutional, unenforceable, void, or inoperative by a court of competent jurisdiction, such declaration shall not affect the validity of the remainder of this Ordinance.

Section 8. This Ordinance shall become effective thirty-one (31) days after adoption, unless the Comprehensive Plan amendment is timely challenged. If timely challenged, the effective date of this Ordinance shall be the date a final order is issued by the State Land Planning or the Administration Commission, finding the adopted amendment to be in compliance. No development orders, development permits, or land uses dependent on this Amendment may be issued or commence before it has become effective. If a final order of noncompliance is issued by the Administration Commission, this Amendment may nevertheless be made effective by adoption of a resolution affirming its effective status, a copy of which resolution shall be sent to the state land planning agency.

PASSED AND ADOPTED in regular session on second and final reading on this 10th day of December, 2024.

ATTEST:

Alexis Givings
Alexis Givings, Interim City Clerk

Thomas F. Carney, Jr.
Thomas F. Carney, Jr., Mayor

Approved as to form and legal sufficiency:

Lynn Gehl
Lynn Gehl, City Attorney

First Reading 11/19/2024

Second Reading 12/10/2024



EXHIBIT "A" SKETCH AND LEGAL DESCRIPTION

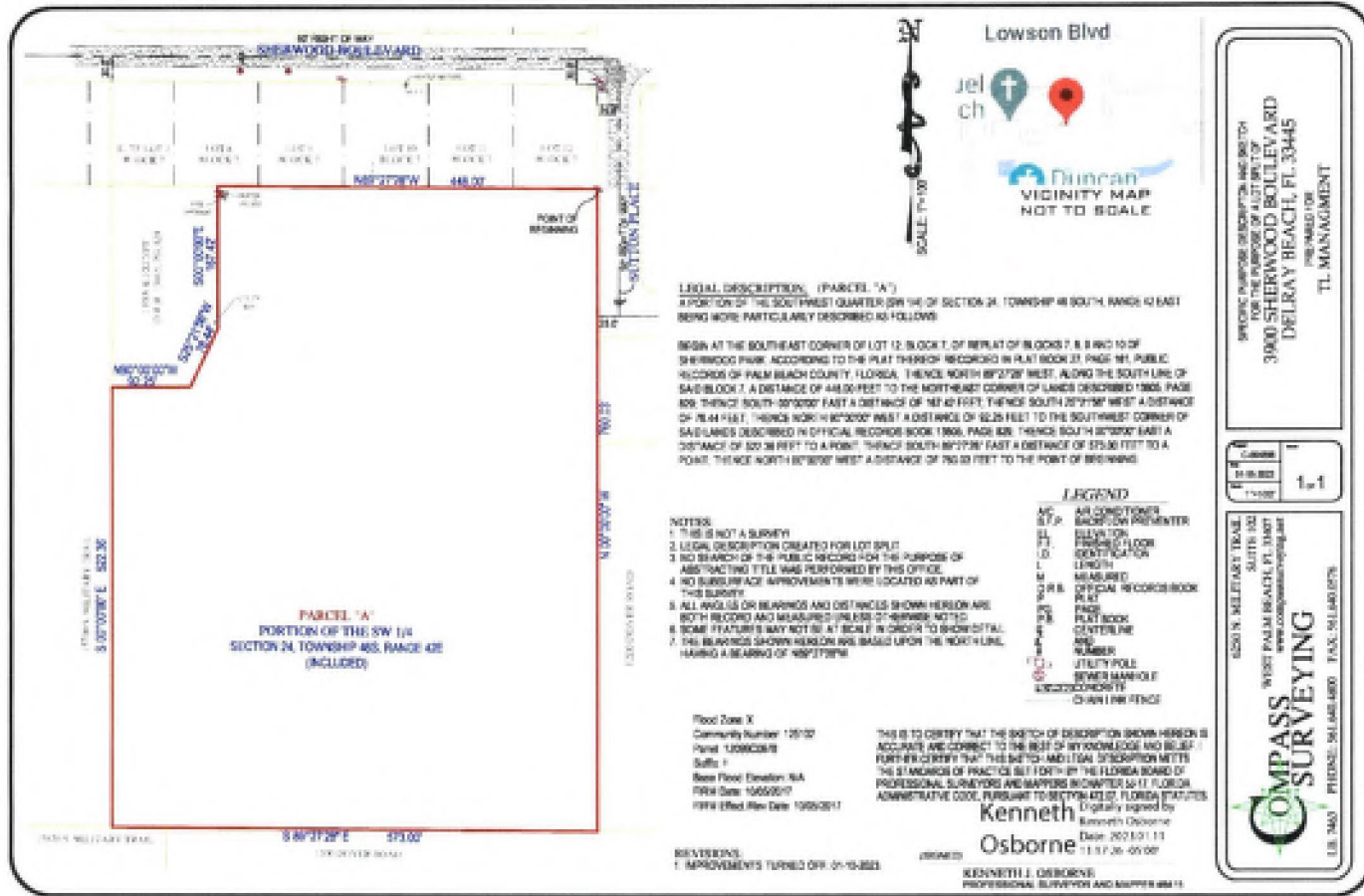


EXHIBIT "B"
EXISTING LAND USE AND SUBJECT AREA

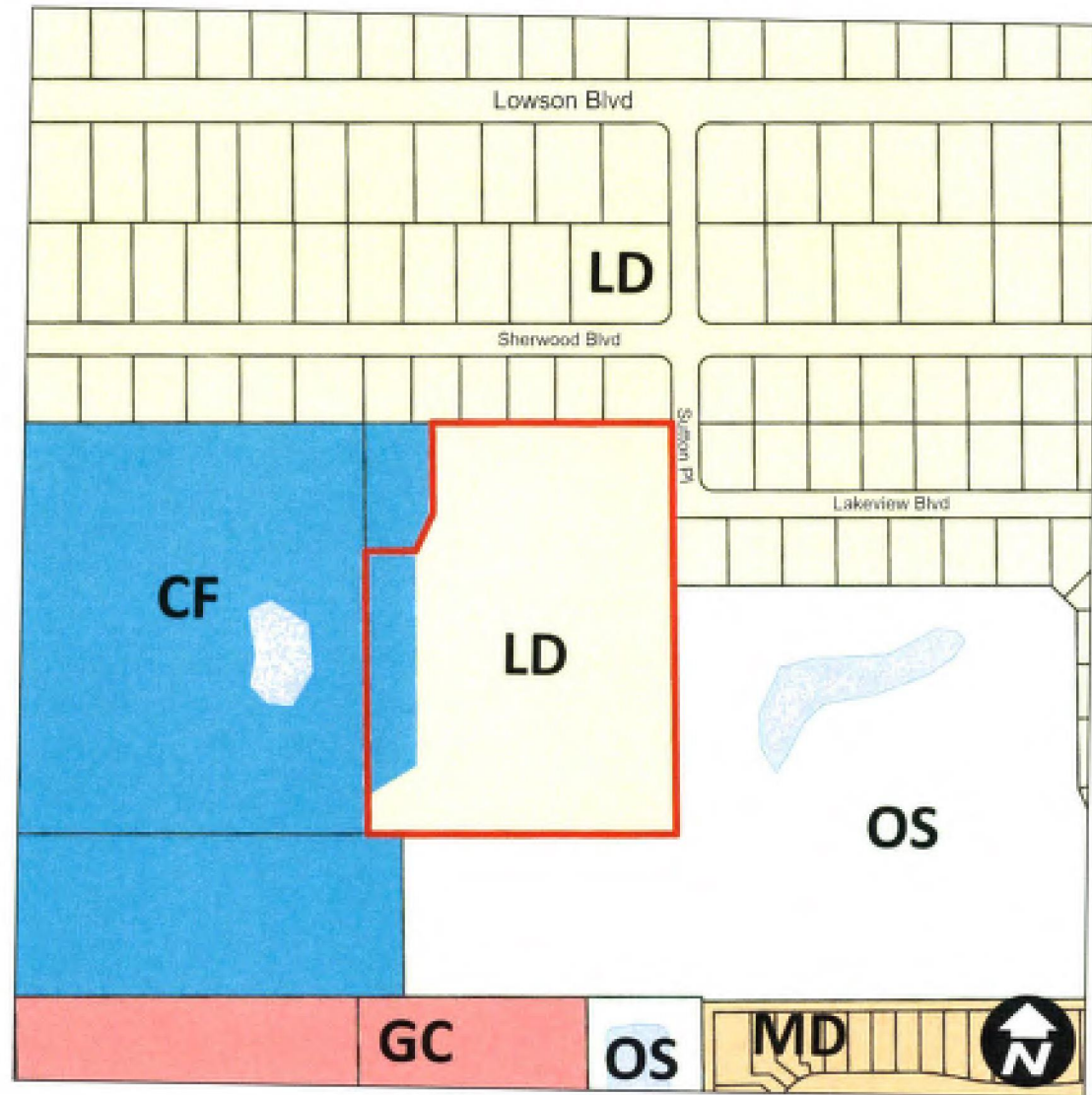


EXHIBIT "C" **PROPOSED LAND USE**

